

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-14

AIRBOSS DEFENSE GROUP, LLC,
COMPLAINANT,

v.

FEDEX TRADE NETWORKS TRANSPORT & BROKERAGE, INC., MSC
MEDITERRANEAN SHIPPING COMPANY S.A. and MEDITERRANEAN SHIPPING
COMPANY (USA) INC., as agent for MSC Mediterranean Shipping Company S.A.
RESPONDENTS.

**MSC MEDITERRANEAN SHIPPING COMPANY S.A. and
MEDITERRANEAN SHIPPING COMPANY (USA) INC.'S
REPLY TO COMPLAINANT'S OPPOSITION IN
REPLY TO THE MOTION TO DISMISS OR
STAY PROCEEDING**

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REPLY TO COMPLAINANT'S OPPOSITION IN REPLY
TO THE MOTION TO DISMISS OR STAY PROCEEDING**

Respondents MSC Mediterranean Shipping Company, S.A.¹ and Mediterranean Shipping Company (USA) Inc. ("Respondents" or "MSC"), through counsel, hereby reply to the opposition ("Opposition") of complainant Airboss Defense Group, LLC ("ADG") to MSC's Motion to Dismiss or Stay Proceeding (the "Motion").

I. INTRODUCTION AND SUMMARY OF ARGUMENT

The Complaint alleges that MSC violated several provisions of the Shipping Act of 1984, as amended, and FMC regulations in connection with cargo belonging to ADG that MSC was contracted to move by respondent FedEx Trade Networks Transport & Brokerage, Inc. ("FTN"). MSC moved to dismiss based on a lack of standing, and a failure to state a claim (and/or other

¹ Incorrectly identified as Mediterranean Shipping Company, S.A. in the Complaint.

deficiencies) in the Complaint. The arguments in the Motion can be summarized as follows:

- The Complainant lacks standing to assert a claim against MSC because it has not been billed by MSC or paid to MSC any charges it now seeks to challenge as unlawful for any period of time after September 24, 2022.
- Section 41102(c) – The Complaint fails to allege any facts which would support a necessary element of a Section 41102(c) offense, namely that the conduct at issue was sufficiently “normal, customary and continuous” to constitute a regulation or practice. Here, only a single group of containers delivered to the same port during November/December of 2021 is at issue.
- Section 41104(d) – The Complaint does not allege the manner in which any purported invoice is supposedly deficient under this statutory provision. More importantly, there is no allegation that any invoice has been issued to Complainant by MSC or that MSC even made a demand to Complainant for payment of charges, which in the end is logical given that there was no contractual relationship between Complainant and MSC.
- Sections 41104(a)(14) and (a)(15) – These provisions merely prohibit the assessment of charges or the issuance of invoices which do not comply with other provisions of law. Without the predicate violation (which does not exist), there can be no violation of these provisions.
- Section 41104(f) – This provision contains no prohibitions and thus cannot be violated.
- 46 C.F.R. §§545.4 and 545.5 – These are interpretative rules that impose no legal obligations in and of themselves, and thus cannot be violated.

As an alternative to dismissal, MSC sought to stay this proceeding pending resolution of previously filed federal court litigation relating to the same set of facts herein at issue.

ADG’s opposition to both aspects of the Motion – dismissal and stay – is without legal and factual support. Accordingly, the Motion by MSC should be granted.

II. ARGUMENT

A. The Complaint Should Be Dismissed Because The Complainant Lacks Standing.

In the Motion, MSC argued that because ADG was an indirect purchaser vis-à-vis MSC, it lacks standing to assert any claim against MSC under the Shipping Act. ADG now claims that it

had two separate contractual relationships with MSC – one evidenced by the settlement agreement attached to the Motion as Exhibit B, and the other evidenced by an email message attached to the Opposition as Exhibit A. As explained below, ADG’s arguments are invalid as a matter of law and of fact.

1. ADG Had No Contract With MSC By Virtue of Their Settlement Agreement.

ADG incorrectly characterizes the settlement agreement attached to the Motion as Exhibit B as the “first contract” between the ADG and MSC. This characterization fails for two reasons.

First, as explained in the Motion, as a matter of law only first-line direct purchasers of carrier services have suffered the “actual injury” which confers standing to seek reparations. In other words, in order to be a direct purchaser and have standing, the complainant must be the direct purchaser of transportation services. *In re Vehicle Carrier Services*, 1 F.M.C.2d 440, 445 (FMC 2019). ADG was not a first-line direct purchaser of carrier services from MSC. The settlement agreement, pursuant to which ADG paid amounts that MSC invoiced to FTN, is not a contract for the purchase of carrier services, and ADG cites no legal authority to suggest that it is. Nor does ADG allege that it purchased any carrier services by virtue of the settlement agreement. Accordingly, as a matter of law, ADG lacks standing.

Second, as a factual matter, the settlement agreement is not a contract relating to the subject of the complaint in this proceeding. The complaint identifies five categories of charges:

(i) Disputed FTN Charges, which paragraph 20 of the Complaint defines as those ocean freight, insurance, storage, demurrage and other charges applicable through May 31, 2022 which respondent FedEx Trade Networks Transport & Brokerage, Inc. (“FTN”) attempted to collect from Complainant via a suit in federal court and which were the subject of a separate settlement agreement between Complainant and FTN (Complaint at ¶ 23). These charges total in excess of \$26.5 million (Complaint at ¶ 20).

(ii) Additional FTN Charges, which paragraph 25 of the Complaint defines as additional charges imposed by FTN. These total approximately \$3.78 million (Complaint at ¶ 25).

(iii) Disputed ITS Chassis Charges, which paragraph 25 of the Complaint defines as charges imposed by non-respondent chassis provider/trucker, ITS. These total approximately \$2.79 million (Complaint at ¶ 25).

(iv) Disposal-Related Charges, which paragraph 31 of the Complaint defines as the demurrage, detention, chassis charges and per diem that accrued from October, 2022 through July, 2023. These are not quantified by the Complaint.

(v) 202 WRO Container Charges, which paragraphs 24 and 25 of the Complaint define as the demurrage, detention, chassis charges and per diem charges remaining after Complainant paid FTN.

The settlement agreement between ADG and MSC deals only with the 202 WRO Container Charges. Therefore, it cannot be a contract with respect to the Disputed FTN Charges, the Additional FTN Charges, the Disputed ITS Chassis Charges, or the Disposal-Related Charges.²

Moreover, the complaint does not challenge the lawfulness of the 202 WRO Container Charges. In this regard, the \$11 million in reparations apparently sought by the Complainant (paragraph 41 of the Complaint) does not appear to correspond to the amount of any of the foregoing categories of charges. However, it corresponds exactly to the \$11 million in damages that FTN is seeking to recover from ADG in federal court. See paragraph 22.A of Exhibit #1 hereto. Paragraph X.B of Exhibit #1 confirms that the Complaint is more focused on not paying any further charges than on the lawfulness of past charges: ADG seeks an order that it has no duty to pay any demurrage or detention charges to MSC or others. In other words, the Complaint does not appear to be seeking recovery of charges paid pursuant to any existing “contract,” but instead appears to be an effort to avoid having to pay the amounts FTN is seeking to recover in federal court.

In light of the foregoing, the settlement agreement with respect to the 202 WRO Container

² As noted in the Motion, the FTN and ITS charges were not imposed by MSC, so these three categories of charges cannot be the subject of the settlement agreement. ADG has not paid the Disposal-Related Charges, so these also cannot be the subject of the settlement.

charges is irrelevant to ADG's standing in this proceeding.³

2. ADG Had No "Second Contract" With MSC.

ADG's attempt to create a second "contract" with MSC based on the September 12, 2022 email from Marco Sidoti of MSC to Cameron Roberts attached to the Opposition as Exhibit A cannot withstand even cursory scrutiny.

As an initial matter, in order to form a contract there must be offer and acceptance, i.e., a meeting of the minds on the material terms of the contract. Nothing in the email suggests that it is an offer, the acceptance of an offer, or a meeting of the minds. In the email, Mr. Sidoti appears to be providing information about the amount of certain types of charges. This is confirmed if one examines the September 10, 2022 email from Mr. Roberts to which Mr. Sidoti is responding, which is attached hereto as Exhibit #2. As can be seen from an examination of that preceding email message, Mr. Roberts asked about the amount of certain charges if some of the containers remained in Los Angeles beyond September 24, 2022. Mr. Sidoti responded to ADG's counsel with the requested information. MSC has not found a response from Mr. Roberts to the September 12 email from Mr. Sidoti.

Given that (i) the September 10 email indicates that it is uncertain if the containers would be remaining in Los Angeles beyond September 24; (ii) Mr. Sidoti's September 12 response contained a caveat that the proper charge would need to be checked based on the location of the containers; and (iii) Mr. Roberts did not reply to the September 12 email, this email exchange falls short of the formation of a contract for transportation services. Rather, the email exchange is evidence of ADG's counsel efforts at attempting to evaluate potential costs his client might incur if timely re-exportation was not possible. As a result, ADG once again lacks standing.

³ Even if ADG is a direct purchaser with respect to the 202 WRO Container Charges, it has released MSC from claims relating to those charges under the settlement agreement attached to the Motion as Exhibit B.

3. *Standing Should Flow From And Track Contractual Obligations.*

A finding that ADG lacks standing would also be consistent with more recent Commission pronouncements on the proper billing of demurrage charges.

In adopting its final rule on demurrage and detention billing requirements, the Commission emphasized the importance of contractual relationships:

...a primary purpose of this rule is to stop demurrage and detention invoices from being sent to parties that did not negotiate contract terms with the billing party.

89 Fed. Reg. 14330, 14336 (Feb. 26, 2024). Similarly:

After careful analysis, the Commission has determined that prohibiting billing parties from issuing demurrage and detention invoices to persons with whom they do not have a contractual relationship will best benefit the supply chain.

89 Fed. Reg. 14330, 14339 (Feb. 26, 2024). The foregoing concept was reflected in what is now 46 C.F.R. §541.4, which prohibits a billing party such as an ocean carrier from invoicing a party with which it does not have a contract for transportation or storage of cargo.⁴ In other words, had 46 C.F.R. Part 541 been in effect during 2021-22, MSC would have been legally precluded from billing ADG for demurrage. Under such circumstances, ADG should not be found to be a direct purchaser of ocean transportation services from MSC.

B. Complainant's Section 41102(c) Claim Should Be Dismissed Because It Fails To Adequately Plead A Necessary Element Of A Violation Of That Section

In its Motion, MSC argued that ADG failed to plead adequately that MSC's conduct was normal, customary, and continuous. ADG's disagreement is baseless.

As noted in the Motion, this dispute centers on a single group of 202 containers, all of which

⁴ There is an exception which permits billing the consignee, but only if contractual privity supports billing the consignee. 89 Fed. Reg. at 14340.

were discharged at the same port during November/December 2021, and barred from entering the United States by a single Customs order. Accordingly, there was no normal, customary, continuous, often repeated, systematic, uniform or habitual conduct on the part of MSC.⁵ A significant factor in uniting these 202 containers is the uncommon single WRO Order issued by US Customs.

ADG made no effort to allege that MSC's conduct falls within the scope of the "normal, customary and continuous" requirement of Section 41102(c). The sole basis for the allegation can be found in a conclusory statement in paragraph 36 of the Complaint::

FTNs and MSC's practices and regulations relating to the assessment of demurrage/detention are related to receiving, handling, storing, or delivering of property, are occurring on a normal, customary, and continuous basis, and are unjust and unreasonable.

ADG now attempts to remedy the deficiency in its Complaint by alleging in the Opposition that paragraphs 12 and 13 of the Complaint make the requisite allegations. They do not. Paragraph 12 does not specify when MSC moved the cargo – it only states when FTN contracted to move the cargo. Similarly, Paragraph 13 also contains no facts which would support a finding that MSC's conduct was customary, continuous, or often repeated.

This cursory treatment of a central element of a valid claim is precisely what has been held to be unacceptable by Supreme Court and Commission jurisprudence. *See Cornell v. Princess Cruise Lines, Ltd.*, 2014 WL 5316340 (FMC Aug. 28, 2014) and *Maier Terminals, LLC v. The Port Authority of New York and New Jersey*, 2015 WL 9426189, at *12 (FMC 2015) ("[m]ere labels and

⁵ *See also Crocus Investments, LLC v. Marine Transport Logistics, Inc.* ("Commission precedent has made clear that a single shipment or isolated act or omission does not show a pattern or practice.") Docket No. 15-04, 2021 WL 3732849, at *8 (FMC Aug. 18, 2021), petition for review denied in sub nom. *Crocus Investments, LLC v. FMC*, 2022 WL 3012275 (D.C. Cir. 2022)); *Ngobros and Co. Nigeria Ltd.*, Docket No. 14-15, 2019 WL 7168688 (FMC Dec. 17, 2019) ("finding a [section 41102(c)] violation based on a single act or omission, is inconsistent with the original intent of Congress, the rules of statutory construction, and Commission precedent.").

conclusions or a ‘formulaic recitation of the elements of a cause of action’ will not suffice, nor will ‘naked assertions devoid of further factual enhancement.’”). The Complaint is nothing if not a formulaic recitation of the relevant element of a Section 41102(c) claim that is devoid of further factual enhancement.

In light of the foregoing, Complainant’s Section 41102(c) claim against MSC should be dismissed.

C. Complainant’s Section 41104(d) Claim Should Be Dismissed

The Complainant alleges that MSC violated Section 41104(d)(2) by failing to issue invoices to ADG. Complaint at ¶ 40. MSC’s Motion argued that while the plain language of this statutory provision requires any invoice issued to contain certain information, it does not require the actual issuance of an invoice. ADG, apparently recognizing the deficiency in its original allegations and attempting to bring those allegations within the scope of this statutory provision, now argues that the settlement agreement between ADG and MSC “could” constitute MSC’s invoice. Opposition at 11. ADG cannot allege that MSC failed to issue an invoice while simultaneously arguing that the settlement agreement is an invoice.

Moreover, ADG’s Opposition alleges that MSC failed to provide ADG with information that would have enabled it to evaluate the FTN charges and other information (container itinerary and vessel cutoff dates). As explained below, these arguments are specious.

Section 41104(d)(2) merely requires that an invoice for demurrage or detention contain certain information. Container itineraries and vessel cutoff dates are not among them. Cognizant of the deficiency of its arguments, ADG appears to be attempting to survive dismissal by muddying the waters with irrelevant arguments.

More importantly, ADG's entire argument is based on the assumption that MSC was under some legal obligation to provide information to ADG. This assumption, as explained above (and admitted by ADG), is false. ADG contracted with FTN, an NVOCC. An NVOCC is a carrier in its relationship with its customer (ADG) and a shipper in its relationship with the ocean carrier (MSC). 46 U.S.C. § 40102(17). Any obligation MSC may have had with respect to invoices and/or the provision of information ran solely to FTN, its contract counterparty. To the extent that ADG was entitled to invoices/information, it would have been entitled to get that information from FTN, the carrier with which ADG entered a contract, not MSC. Nothing in the settlement agreement concluded in late August of 2022 or the exchange of emails between Mr. Sidoti and Mr. Roberts in September of 2022 created a contractual relationship between ADG and MSC with respect to the transport of the containers in 2021.

D. Complainant Fails To State A Claim Under Section 41104(a)(15)

Section 41104(a)(15) makes it unlawful for a regulated entity to:

invoice any party for demurrage or detention charges unless the invoice includes information as described in subsection (d) showing that such charges comply with—

(A) all provisions of part 545 of title 46, Code of Federal Regulations (or successor regulations); and

(B) applicable provisions and regulations, including the principles of the final rule published on May 18, 2020, entitled "Interpretive Rule on Demurrage and Detention Under the Shipping Act" (or successor rule);

Section 41104(a)(15) does not require the issuance of an invoice – it deals with the content of the invoice. Complainant's allegations with respect to invoicing are limited to allegations that MSC did not issue an invoice. However, the non-issuance of an invoice cannot and does not violate Section 41104(a)(15) particularly where, as here, MSC invoiced its contractual counterparty, FTN, for the

very charges which ADG complains about.

ADG makes no meaningful effort to respond to this argument in the Motion. Accordingly, this claim should be dismissed.

E. Complainant Fails To State A Claim Under Section 41104(f)

ADG admits that Section 41104(f) does not give rise to a separate claim. Opposition at 12. Therefore, its claim under this provision of the statute should be dismissed.

F. Complainant Fails To State A Claim Under 46 C.F.R. §§545.4 and 545.5

Complainant's claims based on these regulations should be dismissed because they are interpretative rules, not legislative rules, and as such contain no requirements and cannot serve as the basis for any legal action.

ADG does not deny this argument. Accordingly, the claims under the FMC's regulations should be dismissed.

G. Complainant Fails To State A Claim Under Section 41104(a)(14)

Because Complainant fails to state a claim under this statutory provision, this portion of the Complaint should be dismissed.

Section 41104(a)(14) makes it unlawful for a common carrier to:

assess any party for a charge that is inconsistent or does not
comply with all applicable provisions and regulations,
including subsection (c) of Section 41102 or Part 545 of
title 46, Code of Federal Regulations.

Absent a predicate violation of some other provision of law, there can be no violation of the foregoing statutory provision. MSC detailed in its Motion how there are no such predicate violations. ADG's only response is to say that FTN's pass through of invoices in May of 2024 and ADG's dispute of those invoices renders MSC's argument moot. But if FTN decided to "pass through" MSC's invoices to ADG, that was a decision by FTN, not MSC. MSC had no contractual

arrangement with ADG in respect to charges for its services.

ADG fails to allege what provision of law is violated by the MSC invoices which FTN sought to pass through. Accordingly, it has still failed to establish any predicate violation for the purported violation of Section 41104(a)(14), which claim must be dismissed.

H. The Proceeding Should Be Stayed If It Is Not Dismissed In Its Entirety

If the Complaint against MSC is not dismissed in its entirety, this proceeding should be stayed pending the resolution of the five pending and earlier filed federal court proceedings mentioned in the introduction involving the same containers and charges.

As noted in the Motion, several of the parties to this proceeding (and other entities that are not) are involved in litigation in federal court with respect to the same containers and charges herein at issue. As noted above, the Complaint in this proceeding appears to be an attempt by ADG to avoid paying the charges that FTN is attempting to recover in the action initiated by Exhibit #1 hereto. Moreover, as the Presiding Officer will note from the docket sheet in that case attached hereto as Exhibit #3, MSC has filed a cross-claim against FTN in that proceeding (Docket Entry #54) that does not involve Shipping Act claims.

As explained in the Motion, resolution of some or all of the claims in federal court litigation will likely turn on the interpretation and/or validity of the existing settlement agreements, which is a non-Shipping Act issue over which the settlement agreements grant exclusive jurisdiction to the federal courts. It would be prudent for the Commission to allow the federal courts to resolve those issues among the parties that do not involve the Shipping Act before proceeding with this litigation (should such litigation still be necessary after the federal actions have been decided). The Commission has previously stayed proceedings before it to allow for the resolution of previously filed federal court actions. *See, e.g., General Motors LLC v. Nippon Yusen Kabushiki Kaisha, et*

al., FMC Docket No. 15-08 (ALJ January 5, 2016).

The fact that the federal court actions were filed first, and the fact that this proceeding appears to have been initiated by Complainant as a reaction to (and avoidance of) the federal court action brought against it by FTN, both favor allowing the federal proceedings to move forward first. The federal forum is not inconvenient, as the parties have already been litigating there for more than 2 years (including one proceeding initiated by Complainant). Complaint, ¶ 42. Moreover, the interpretation of the settlement agreements is a matter of contract law rather than a Shipping Act issue. In addition, the federal court is better situated to protect all parties' rights, given that some of the parties involved in the disputes surrounding the ADG containers are not subject to FMC jurisdiction (e.g., ITS, McWilliams Collective). Finally, for purposes of efficiency and avoiding piecemeal litigation, it makes sense to have the federal court proceedings resolved first. By determining what is and is not covered by the existing settlement agreements, the scope of the proceedings before the Commission could be narrowed and unnecessary parties eliminated. For example, if the federal court holds that an entity other than Complainant is liable for the charges Complainant challenges in this proceeding (such as its transportation broker), then this entire proceeding would be rendered moot.

Allowing the federal court proceedings to move forward first also reduces the possibility for inconsistent decisions. For example, if this proceeding were to go forward only that portion of the Disposal-Related Charges attributable to regulated entities would be before the Commission, whereas the chassis charges of ITS that make up a monetarily significant part of the Disposal-Related Charges would not. It would be inconsistent for ITS to be awarded its charges by a federal court but for the regulated entities to be denied their charges by the Commission. Similarly, if the Commission were to rule in favor of Complainant with respect to all charges, ITS (which is not

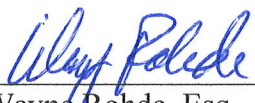
subject to FMC jurisdiction) could still pursue its claim against FTN in federal court, and presumably FTN could then bring contractual claims against ADG and/or MSC.

Accordingly, if this proceeding is not dismissed in its entirety, MSC respectfully requests that this proceeding be stayed until after all non-Shipping Act issues among the parties have been fully and finally resolved in federal court.

III. CONCLUSION

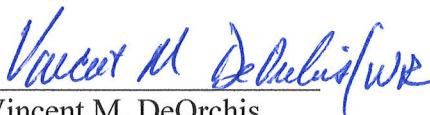
For the foregoing reasons, the Complaint should be dismissed or, if the Complaint is not dismissed in its entirety, this proceeding should be stayed pending resolution of the five federal court proceedings among the parties presently pending in the U.S. District Courts.

Respectfully submitted,

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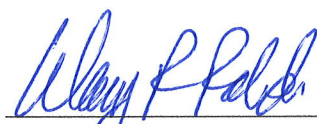
CERTIFICATE OF SERVICE

I do hereby certify that I have delivered a true and correct copy of the foregoing reply to the parties to this proceeding via email transmission on this 19th day of July, 2024.

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